SUBHASH B. DESAI, ADVOCATE
C/o 4th Floor, Survey #208/1-B, Viman Nagar, Pune - 411 014

Legal Notice

Date: - 20 March, 2025
Ref No: - PSAFL/Pre-Arb/3/2025/D199477

KUNAL DAS
46A 1 LAKE EAST, 6TH ROAD FLAT NO, 4 SANTOSHPUR SANTOSHPUR, KOLKATA, WEST BENGAL - 700075

SUB: - *Pre-Arbitration Notice* for Loan Account (s) as mentioned in Schedule 1.

Dear Sir / Madam,

Under the instructions for and on behalf of my client Bajaj Finance Limited, a company registered under the Companies Act 1956, having it's Registered Office at Mumbai Pune Highway, Akurdi, Pune 411035 and having its Corporate office 5th Floor, Survey #208/1-B, Viman Nagar, Pune - 411 014, I have to address you this notice as under:

That You had approached my Client to avail **loan (details of which are more specifically mentioned in the Schedule-1 hereto) and** based *on your representations on financial soundness, income status; documents submitted and* promises made by You by execution of Loan Documents in favour of my client, my Client had sanctioned and disbursed the said loan ("Loan documentation").

By executing said Loan documents you categorically promised and agreed to ensure timely repayment of loan to my Client. In order to make timely repayment you had induced my client to believe your representation and provided [NACH/ Auto Debit mandates] for direct deduction of EMIs from your bank account. Please note that regular payment of the EMIs is/was the essence of the Loan documentation.

However, to the utter surprise of my Client, a series of [NACH/Auto Debit mandates] issued by you towards payment of EMIs towards repayment of the said Loan have been dishonoured on various dates by your banker and the EMI amount is not realized by my Client. Despite repeated requests and follow ups, you had adopted callous attitude and never made any efforts to make the payment and clear the dues ("default").

In view of the said default, it appears that you had dishonest intention to never pay back and put my Client to losses, since your act of NOT responding to repeated requests and NOT making the timely payment of the dues assured by you shows your mala-fide intentions in availing financial facility to gain undue enrichment, which is unlawful and untenable.

Hence, You are hereby called upon by way of this notice to pay forthwith the entire Outstanding dues together with applicable interest and other contractual charges payable by you and accrued in your loan account under the said Agreement as hereinafter mentioned.

In the event if you fail to comply by effecting payment of outstanding dues, together with interests & applicable charges, I hereby further inform you that, as mentioned in para (1) above my client shall be constrained to invoke arbitration clause as enshrined in the said Loan documentation by appointing a sole Arbitrator, who will conduct the online arbitration proceeding.

Accordingly, my client hereby proposing the names of below mentioned five individuals, from its panel of arbitrators and with an option to select and nominate any ONE, for appointment as the Sole Arbitrator for resolving the dispute and confirm the same in writing:

1. Sh. Vishal Kale, Pune
2. Sh. Bikash Vishwakarma, Delhi
3. Sh. Gangadar K M, Bangalore
4. Sh. Yara Ramesh, Hyderabad
5. Sh. M Ganesh, Chennai

Please note that in case if you fail to clear the entire outstanding and/or nominate and confirm the name of ANY ONE individual (out of the above mentioned panel of arbitrators) to be appointed as the Sole Arbitrator OR in case if my client does not receive any response from you in this regard within ten (10) days from the date of this notice to email id "arb.communication@bajajfinserv.in", then, your deemed acceptance is construed to have been provided for appointment of any one of the above named persons as the Sole Arbitrator, as may be decided by my client at its sole discretion.

Further, the Arbitration proceedings shall be conducted under the provisions of the Arbitration and Conciliation Act, 1996 together with its amendments, any statutory modifications or re-enactments thereof and the award of such arbitrator shall be final and binding upon the Parties. Further you shall be liable for the entire costs of the arbitration and all legal expenses incurred by my client including attorney fees, out of pocket expenses etc.

SCHEDULE - 1

LOAN DETAILS

Loan No	Amount Finance	O/S Amount
P410PSA4817471	Rs. 632999.0	Rs. 605511.0
Total		Rs. 605511.0

Please ignore if already paid

We are communicating through your registered mobile number with us.

(ADVOCATE)